

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
HERBERT MORALES and ALEXANDRA MARTINEZ,

SUMMONS

Plaintiffs,

Plaintiffs designate
New York County
as the place of trial.

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE COMMISSIONER KEECHANT L.
SEWELL, INDIVIDUALLY, POLICE OFFICER VICENTE A.
CONSTANTINE, INDIVIDUALLY, POLICE OFFICER JAMIE
N. VASQUEZ, INDIVIDUALLY, POLICE OFFICERS
“JOHN DOE” 1 - 6, INDIVIDUALLY, POLICE OFFICERS “JANE
DOES” 1-2, INDIVIDUALLY, OTHER POLICE OFFICERS,
INDIVIDUALLY, WHOSE IDENTITIES ARE IN THE SOLE
POSSESSION OF THE NEW YORK CITY POLICE DEPARTMENT
and CIVILIAN EMPLOYEES IN THEIR INDIVIDUAL CAPACITY,
WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE
NEW YORK CITY POLICE DEPARTMENT,

The basis of venue is:
Location of incident.

DATE FILED:
March 17, 2023

Plaintiffs reside at:
144 Seaman Avenue
New York, NY 10034

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of
your Answer, or, if the Complaint is not served with this summons, to serve a notice of appearance on
the plaintiffs’ attorneys, within twenty days after the services of this Summons exclusive of the day of
service, where service is made by delivery upon you personally within the state, or within 30 days after
completion of service where service is made in any other manner. In case of your failure to appear or

answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
January 17, 2023



GENTILE & ASSOCIATES
By: Laura Gentile
Attorneys for Plaintiffs
79 Madison Avenue, Eighth Floor
New York, New York 10016
(212) 689-6009

To:

THE CITY OF NEW YORK
100 Church Street
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NEW YORK CITY POLICE DEPARTMENT
100 Church Street
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serviceecf@law.nyc.gov

POLICE COMMISSIONER KEECHANT L. SEWELL
One Police Plaza
New York, NY 10038
serviceecf@law.nyc.gov

POLICE OFFICER VICENTE A. CONSTANTINE
4295 Broadway
New York, NY 10033

POLICE OFFICER JAMIE N. VASQUEZ
4295 Broadway
New York, NY 10033

POLICE OFFICERS "JOHN DOE" 1 - 6

POLICE OFFICERS "JANE DOES" 1-2

OTHER POLICE OFFICERS, WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF
THE NEW YORK CITY POLICE DEPARTMENT

CIVILIAN EMPLOYEES WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE
NEW YORK CITY POLICE DEPARTMENT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
HERBERT MORALES and ALEXANDRA MARTINEZ,

**VERIFIED
COMPLAINT**

Plaintiffs,

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE COMMISSIONER KEECHANT L.
SEWELL, INDIVIDUALLY, POLICE OFFICER VICENTE A.
CONSTANTINE, INDIVIDUALLY, POLICE OFFICER JAMIE N.
VASQUEZ, INDIVIDUALLY, POLICE OFFICERS "JOHN DOE"
1 - 6, INDIVIDUALLY, POLICE OFFICERS "JANE DOES" 1-2,
INDIVIDUALLY, OTHER POLICE OFFICERS, INDIVIDUALLY,
WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE
NEW YORK CITY POLICE DEPARTMENT and CIVILIAN
EMPLOYEES IN THEIR INDIVIDUAL CAPACITY, WHOSE
IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW
YORK CITY POLICE DEPARTMENT,

Defendants.

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Plaintiffs, HERBERT MORALES and ALEXANDRA MARTINEZ, by their attorneys,
GENTILE & ASSOCIATES, allege, upon information and belief, the following:

PRELIMINARY STATEMENT

1. Just after 6 a.m. on August 22, 2022, a phalanx of eight police officers awoke plaintiffs by pounding on the door of plaintiffs' residence. Although the police were at the wrong apartment, after plaintiff Herbert Morales unlocked the door to the apartment, the officers pushed in, accused plaintiffs of a range of demeaning, defaming and humiliating acts, from noisy sex to domestic abuse, proceeded to physically inspect plaintiff Morales, and proceeded to observe the naked body of plaintiff Alexandra Martinez. Even after the police officers were informed they were in the wrong apartment, they refused to leave plaintiffs' apartment, causing exacerbation of the fear,

humiliation, and continued violation of, inter alia, plaintiffs' right to privacy, security of their home and freedom from false accusations and arrest.

CAUSES OF ACTION

2. At the time of these events, Plaintiffs, HERBERT MORALES and ALEXANDRA MARTINEZ were residents of New York County, City and State of New York.

3. The cause of action alleged herein arose in New York County, City and State of New York.

4. This action falls within one or more of the exemptions set forth in CPLR §1602.

5. At all times mentioned, the CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

6. At all times relevant herein, defendant the NEW YORK CITY POLICE DEPARTMENT was and still is a department of The City of New York.

7. On October 27, 2022 Plaintiffs served a Notice of Claim in writing upon Defendant CITY OF NEW YORK, by delivering a copy thereof online, which Notice of Claim advised Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, damages and injuries sustained so far as was then determinable.

8. At least thirty (30) days have elapsed since the service of the Notice of Claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

9. On or about March 13, 2023 and March 17, 2023 Statutory hearings were held.

10. Upon information and belief, at all times mentioned, Defendants POLICE COMMISSIONER KEECHANT L. SEWELL, POLICE OFFICER VICENTE A. CONSTANTINE, POLICE OFFICER JAMIE N. VASQUEZ, POLICE OFFICERS "JOHN

DOE” 1 - 6, POLICE OFFICERS “JANE DOES” 1-2, OTHER POLICE OFFICERS, WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE DEPARTMENT and CIVILIAN EMPLOYEES, WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE DEPARTMENT were and are employees of the Defendant CITY OF NEW YORK, and employed by the New York City Police Department (“NYPD”) and at all times herein, were acting in such capacity as the agents, servants and employees of Defendants, CITY OF NEW YORK and NYPD.

11. At all times relevant herein, Defendants entered the wrong apartment, i.e., plaintiffs’ apartment.

12. At all times relevant herein, Defendants incorrectly recorded and/or transcribed information received from a 911 call, an informant and/or a confidential informant; and/or incorrectly communicated information to responding police officers.

13. On August 18, 2019, plaintiffs HERBERT MORALES and ALEXANDRA MARTINEZ were awakened in the early morning hours of August 22, 2022 in their home which was invaded by defendants at which time defendants seized, searched, battered, assaulted, threatened with use of force, and detained without probable cause, reasonable suspicion, or just reason, and in bad faith by the defendants.

14. At all times relevant herein, Defendants wrongfully, willfully, maliciously and with gross negligence deprived plaintiffs of their civil, human, and constitutional rights and were wrongfully searched, seized, assaulted, detained, confined, disparaged and were deprived of liberty, assaulted, battered, verbally threatened, caused pain and suffering, abused, searched, questioned, threatened, seized, and humiliated by defendants without probable cause, reasonable suspicion, or legal justification.

15. At all times relevant herein, Defendants falsely accused plaintiffs of committing loud and/or rough sexual activity, accused plaintiffs of domestic violence, and accused of plaintiffs of disturbing the peace without probable cause, reasonable suspicion, or legal justification.

16. At all times relevant herein, defendants exercised excessive force and engaged in negligent and improper investigation, inadequate investigation, and improper procedures.

17. At all times relevant herein, defendants injured, falsely accused, falsely arrested, defamed, detained, humiliated, and deprived plaintiffs of their civil, human, and New York City, New York State and United States constitutional rights by reason of their negligence, recklessness, carelessness, gross negligence, and the willful, wanton and malicious acts and/or omissions.

18. At all times relevant herein, defendants violated plaintiffs' rights that are protected by the laws, rules and regulations of the City of New York, the State of New York and the United States of America.

19. At all times relevant herein, defendants acted or relied on actual or perceived race, national origin, color, creed, age, immigration or citizenship status, gender, or housing status as the determinative factor in initiating law enforcement and continuing police action against plaintiffs in violation of New York City Administrative Code Bias-Based Profiling § 14-151.

20. At all times relevant herein, defendants by force or threat of force, knowingly injured, intimidated and interfered with, oppressed and threatened plaintiffs in the free exercise or enjoyment of their rights and privileges secured the constitution or laws of this state and by the constitution or laws of the United States and by local law of the city which was motivated in whole or in part by the plaintiffs' actual or perceived race, creed, color, national origin, gender, age, marital status, partnership status, and immigration or citizenship status in violation of New York City Administrative Code § 8-603 Discriminatory Harassment.

21. At all times relevant herein, defendants failed to advise plaintiffs of their rights.

22. At all times relevant herein, defendants failed to give plaintiffs Miranda warnings.
23. At all times relevant herein, defendants failed to tell plaintiffs the reason they were detained.
24. At all times relevant herein, plaintiffs did not consent to the entry of defendants into their home.
25. At all times relevant herein, defendants failed to leave plaintiffs' home despite being instructed to leave by the plaintiffs.
26. At all times relevant herein, defendants unnecessarily observed plaintiff Alexandra Martinez naked; conspired to observe plaintiff naked, negligently failed to prevent the unnecessary observation of plaintiff by others; promoted the involuntary exposure of plaintiff Alexandra Martinez to other Police Officers; and followed plaintiff Alexandra Martinez into her bedroom and continued to unnecessarily observe plaintiff Alexandra Martinez naked.
27. The above-mentioned conduct persisted, continued and escalated after the defendants knew or should have known that they were in the wrong apartment.
28. At all times relevant herein, defendants made false reports and false statements, swore false criminal complaints, and instituted and maintained false criminal charges against plaintiff Hector Morales and caused him to be detained against his will and in violation of his Constitutional, Statutory and Common Law Rights by reason of the negligence, recklessness and carelessness of defendants in the practices, hiring, screening, training and supervision of their personnel, improper policies and the wrongful, willful, malicious, negligent and grossly negligent acts and omissions of the above-named Police Officers and civilian employees of the New York City Police Department.
29. All above acts were the result of a pattern and practice and improper training by respondents.

30. All acts were in violation of U.S. and New York State Common Law Tort, U.S. and New York State Statute, New York City Rules and Regulations, the U.S. and New York State Constitution, the Monell Doctrine, and 28 U.S.C. §§ 1983 and 1985.

31. No negligence on the part of the plaintiffs contributed to the occurrence alleged herein in any manner whatsoever.

ASSAULT AND BATTERY

32. At all times relevant herein, defendants, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, and seized the plaintiffs in an excessive manner causing physical pain and mental suffering. At no time did the defendants have legal cause to grab, seize, or touch the plaintiffs, nor did the plaintiffs consent to this illegal touching, nor was it privileged by law.

33. As a result of the aforementioned occurrence, plaintiffs were caused to sustain serious personal injuries and to have suffered shock, pain, public humiliation, defamation, and severe emotional distress and mental anguish; and, upon information and belief, all of plaintiffs' injuries and their effects will be permanent; and as a result of said injuries, plaintiffs have been and will continue to be obliged to incur expenses for medical care and attention; and plaintiffs have been and will continue to be rendered unable to perform plaintiffs' normal activities and have sustained resultant losses therefrom.

34. Plaintiffs hereby demand compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

VIOLATION OF PLAINTIFFS' CONSTITUTIONAL RIGHTS

35. At all times relevant herein, defendants, acting under color of state law, searched the plaintiffs without their consent and without probable cause or reasonable suspicion and without any

valid warrant, order or legal process, seized and falsely arrested and detained plaintiffs, thereby depriving plaintiffs of their right to be free from unreasonable search and seizure as required by the Fourth and Fourteenth Amendments, therefore, defendants are liable under 42 USC § 1983 which prohibits deprivation under color of state law, of rights secured under the United States Constitution.

36. At all times relevant herein, plaintiffs were unlawfully assaulted, battered, detained, arrested, and deprived of their constitutional rights, in violation of and actionable under 42 USC § 1983.

37. As a result of the aforementioned occurrence, plaintiffs were caused to sustain serious personal injuries and to have suffered shock, pain, public humiliation, defamation, and severe emotional distress and mental anguish; and, upon information and belief, all of plaintiffs' injuries and their effects will be permanent; and as a result of said injuries, plaintiffs have been and will continue to be obliged to incur expenses for medical care and attention; and plaintiffs have been and will continue to be rendered unable to perform plaintiffs' normal activities and have sustained resultant losses therefrom.

38. Plaintiffs hereby demand compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

MONELL ACTION

39. The City of New York and police officers and civilian employees sued in their official capacity are liable under the "Monell" doctrine.

40. Defendants City of New York has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers

are not in possession of a court authorized arrest and/or search of individuals warrant, especially with respect to the principle and policy that the arrest should be based on probable cause.

41. The City of New York was negligent and/or deliberately indifferent by failing to implement a policy with its police department and instruct police officers who, absent the consent of the Plaintiffs (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest, seize and or search individuals such as the Plaintiffs here where probable cause is lacking.

42. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy or training program with its Police Department or actively enforce the law.

43. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department that prohibits and punishes Police Officers for manufacturing false evidence against criminal defendants.

44. The foregoing acts, omissions and systemic failures are customs and policies of the City of New York which caused the police officers to falsely arrest, illegally seize and search, maliciously prosecute, suborn false testimony against Plaintiffs, under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

45. The defendants' deliberate indifference is further evident by and through the lack of meaningful investigation and punishment of transgressors. Upon information and belief, the NYPD Internal Affairs Bureau investigations rarely lead to administrative trials, and when they do, and the charges are somehow sustained, the punishment is minimal, thereby lacking any deterrent effect.

46. There is a pervasive pattern, custom and de facto policy of the City of New York to allow its police officers to violate the constitutional rights of citizens, as reported in the New York Daily News expose of Sunday May 19, 2013 where the Daily News reported a litany of

unconstitutional actions taken by the NYPD teams of police officers that have been the subject of lawsuits and departmental hearings but resulted in virtually no reprimands to the offending officers, rather, one officer was promoted to a Lieutenant even when his actions were known to be unconstitutional.

47. The defendants subjected plaintiffs to these deprivations, either in a malicious or reckless disregard of the plaintiffs' rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.

48. The damages alleged herein are direct and proximate result of the Defendants' acts.

49. Plaintiffs hereby demand compensatory and punitive damages against City of New York in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

50. The acts complained of were extreme, outrageous, intolerable, and beyond the bounds of a civilized society.

51. The actions and omissions of the defendants were intentionally and recklessly designed to cause plaintiffs severe emotional distress or were taken with reckless disregard of the significant probability of causing plaintiffs severe emotional distress.

52. As a result of the foregoing, plaintiffs were caused to sustain serious injuries suffered injury in that their reputation was damaged; their good names were damaged; they have suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for medical care; and plaintiffs were and will continue to be rendered unable to perform their normal activities and duties and have sustained resultant losses therefrom.

53. Plaintiffs hereby demand compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

54. The acts complained of were extreme, outrageous, intolerable, and beyond the bounds of decency tolerated in this society.

55. Defendants knew or should have known that their conduct would cause extreme emotional distress to plaintiffs.

56. Defendants continued to violate plaintiffs' rights despite their knowledge that their conduct caused and was causing extreme emotional distress.

57. Defendants negligently caused plaintiffs to suffer from extreme emotional distress.

58. As a result of the foregoing, plaintiffs were caused to sustain serious injuries suffered injury in that their reputations were damaged; their good names were damaged; suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for medical care; and plaintiffs were and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

59. Plaintiffs hereby demand compensatory against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

DEFAMATION

60. Defendants made numerous false statements regarding plaintiffs that caused special harm, and which constituted defamation *per se*.

61. Defendants made numerous false statements in public regarding plaintiffs that caused special harm, and which constituted defamation *per se*.

62. Plaintiffs' names are now searchable by law enforcement personnel and other governmental agencies as having been questioned about, detained for, and suspected in criminal matters, including but not limited, to domestic violence and disturbing the peace, and including but not limited to the domestic incident report (DIR) (form 3221) filled out and filed. Plaintiffs continue to be defamed by the records maintained by defendants, New York State, and others. Plaintiffs' reputations and good names have been and continue to be tarnished.

63. Plaintiffs are entitled to have their names removed, purged and expunged from defendants' files, from defendants' collection of domestic incident reports, from defendants' DIR database, from the NYS DIR repository, and from any other places defendants maintain or to which defendants submitted plaintiffs' names.

64. These wrongful acts and illegitimate purposes caused plaintiffs to suffer severe and permanent harms and special damages.

65. As a result of the foregoing, plaintiffs were caused to sustain serious injuries suffered injury in that his reputation was damaged; their good names were damaged; have suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for medical care; and were and will continue to be rendered unable to perform their normal activities and duties and has sustained a resultant loss therefrom.

66. Plaintiffs hereby demand compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

NEGLIGENCE

67. The above acts and omission were negligent and unreasonable, causing plaintiffs to suffer severe and permanent injury.

68. As a result of defendants' negligence, plaintiffs suffered severe and permanent harms and special damages.

69. As a result of the foregoing, plaintiffs were caused to sustain serious injuries suffered injury in that their reputation was damaged; their good names were damaged; have suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for medical care; and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and has sustained a resultant loss therefrom.

70. Plaintiffs hereby demand compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

FALSE ARREST

71. The above state acts and omissions constitute false arrest under the laws of the State of New York.

72. As a result of the foregoing, plaintiffs were caused to sustain serious and permanent injury.

73. As a result of the foregoing, plaintiffs were caused to sustain serious injuries suffered injury in that their reputation was damaged; their good names were damaged; have suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for

medical care; and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and has sustained a resultant loss therefrom.

74. Plaintiffs hereby demand compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

TRESPASS

75. Defendants entered plaintiffs' home without justification or permission.

76. Defendants intentionally entered plaintiffs' home without justification or permission.

77. Defendants remained in plaintiffs' home without justification or permission.

78. Defendants intentionally remained in plaintiffs' home without justification or permission.

79. As a result of the foregoing, plaintiffs were caused to sustain serious injuries suffered injury in that their reputation was damaged; their good names were damaged; have suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for medical care; and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and has sustained a resultant loss therefrom.

80. Plaintiffs hereby demand compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

WHEREFORE, plaintiffs demand judgment against the defendants, jointly and severally, in an amount greater than the jurisdictional limits of all lower courts which would otherwise have jurisdiction., together with attorneys' fees, the costs and disbursements of this action.

Dated: New York, New York
January 17, 2023

A handwritten signature in black ink, appearing to read 'Laura Gentile', with a stylized flourish at the end.

LAURA GENTILE
GENTILE & ASSOCIATES
Attorneys for Plaintiffs
79 Madison Avenue – 8th Floor
New York, NY 10016
Tel: (212) 689-6009

VERIFICATION

LAURA GENTILE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of GENTILE & ASSOCIATES, attorneys for plaintiffs. I have read the foregoing Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
January 17, 2023

A handwritten signature in black ink, appearing to read 'Laura Gentile', written over a horizontal line.

LAURA GENTILE